

In this webinar, Jeremy Kahn and Teddy Brown provide critical insights into how AI is transforming evidence in federal court. They highlight that videos, images, and documents can now be manipulated or entirely fabricated, and offer guidance on navigating AI-generated content under evolving federal rules. The discussion covers the stakes of Rules 901 and 707, emphasizing that authentication is harder, explainability is critical, and opaque AI cannot be used. They explain why expert witnesses are more essential than ever, interpreting AI, validating outputs, and keeping evidence admissible. Practical, real-world implications for legal teams are addressed, including surveillance footage, AI-assisted eDiscovery, risk scoring, and more. The bottom line: AI literacy and expert collaboration are now baseline skills for litigators and investigators.

iDS™
iDiscovery Solutions

Content

Deepfakes Meet the Federal Rules 3

Authenticity Now Requires Expertise 4

Rule 707 5

Experts Will Not Be Replaced. 6

Ethical Dimensions 7

AI That Can't Be Explained, Can't Be Admitted 8

Looking Ahead 9

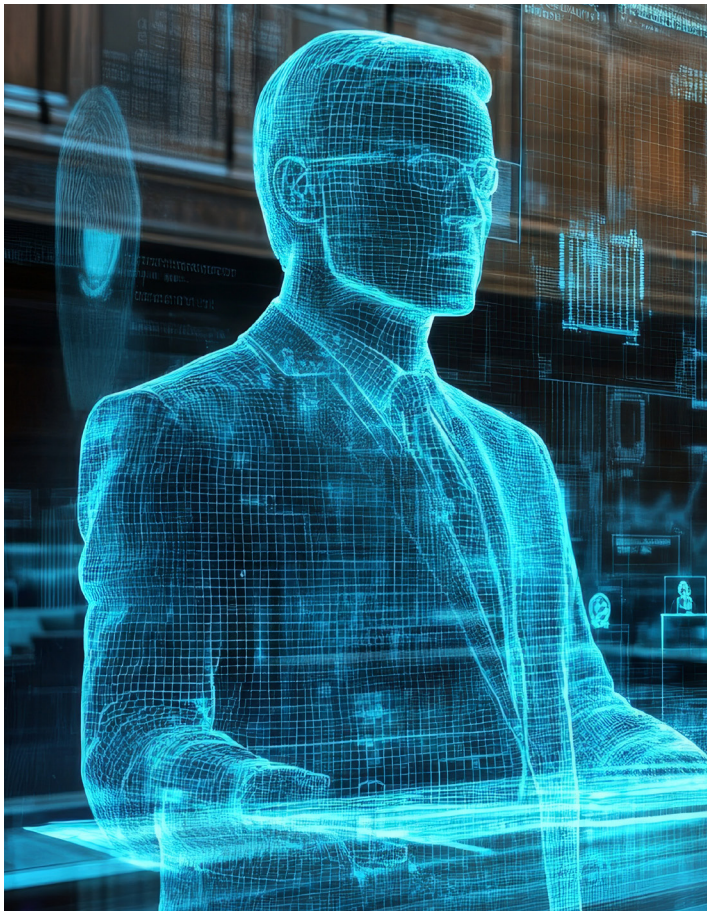
Final Takeaway 10

Watch the full webinar.

CLICK HERE TO VIEW

Deepfakes Meet the Federal Rules

The Advisory Committee on the Federal Rules of Evidence is working on amendments that directly respond to the rise of AI. Of particular note is the proposed refinement to Rule 901, which governs the authentication of evidence. Historically, authentication has been a relatively low bar, requiring only a showing that a reasonable jury could believe the evidence is what the proponent claims. But with AI-generated content, especially deepfakes, the stakes are different. Fabricated evidence may look real, sound real, and be nearly undetectable to a lay observer.



The proposed changes suggest a tiered burden-shifting framework:

- If the objecting party raises credible evidence that material has likely been altered or is AI-generated,
- Then the proponent must prove, by a "more likely than not" standard, that the evidence is authentic.
- Notably, the judge, not the jury, would decide this threshold issue.

Authenticity Now Requires Expertise

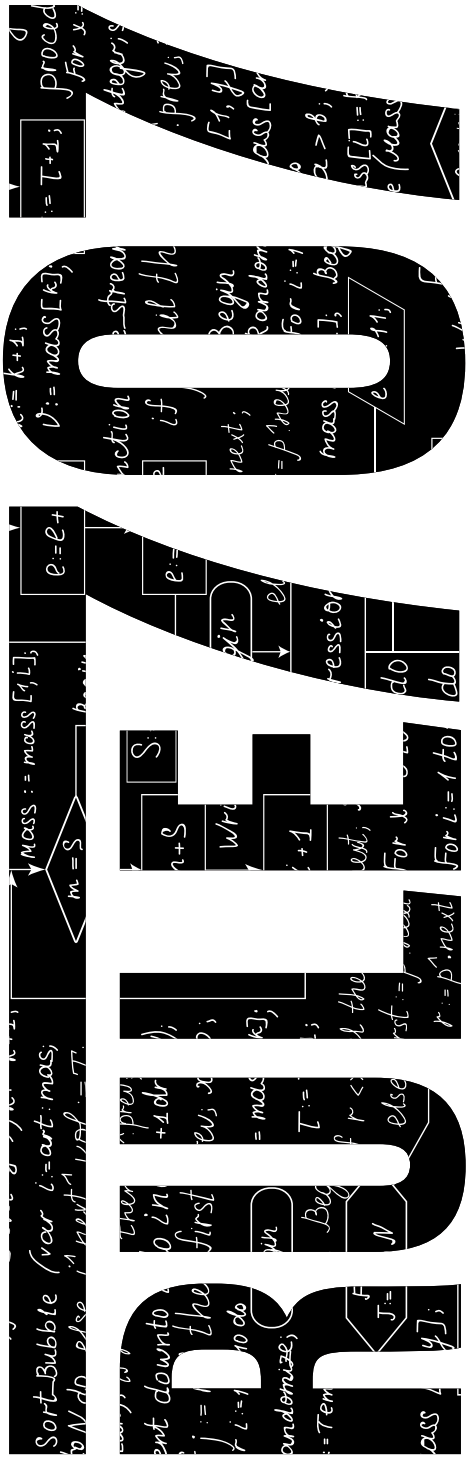
Under current rules, authenticating a video might require a simple witness confirmation. In the future, AI-generated content will often demand a technical expert and someone who can explain:

- How the content was produced
- Whether it has been manipulated
- How the underlying AI system functions
- Whether it is reliably tied to a known process or source

AI-generated evidence that cannot be explained or verified may become inadmissible. Not because of its form, but because of the opacity of the process that created it. "Black box" models, where even developers can't explain an output, may fail under Rule 702, which governs expert testimony.



Rule 707:
The AI Accountability Rule



A new draft rule, Rule 707, is also under discussion. Its goal is simple: prevent parties from using AI to bypass human expert standards. If a human would have to pass a Daubert challenge to introduce certain evidence, so too must the AI that produced the equivalent result.

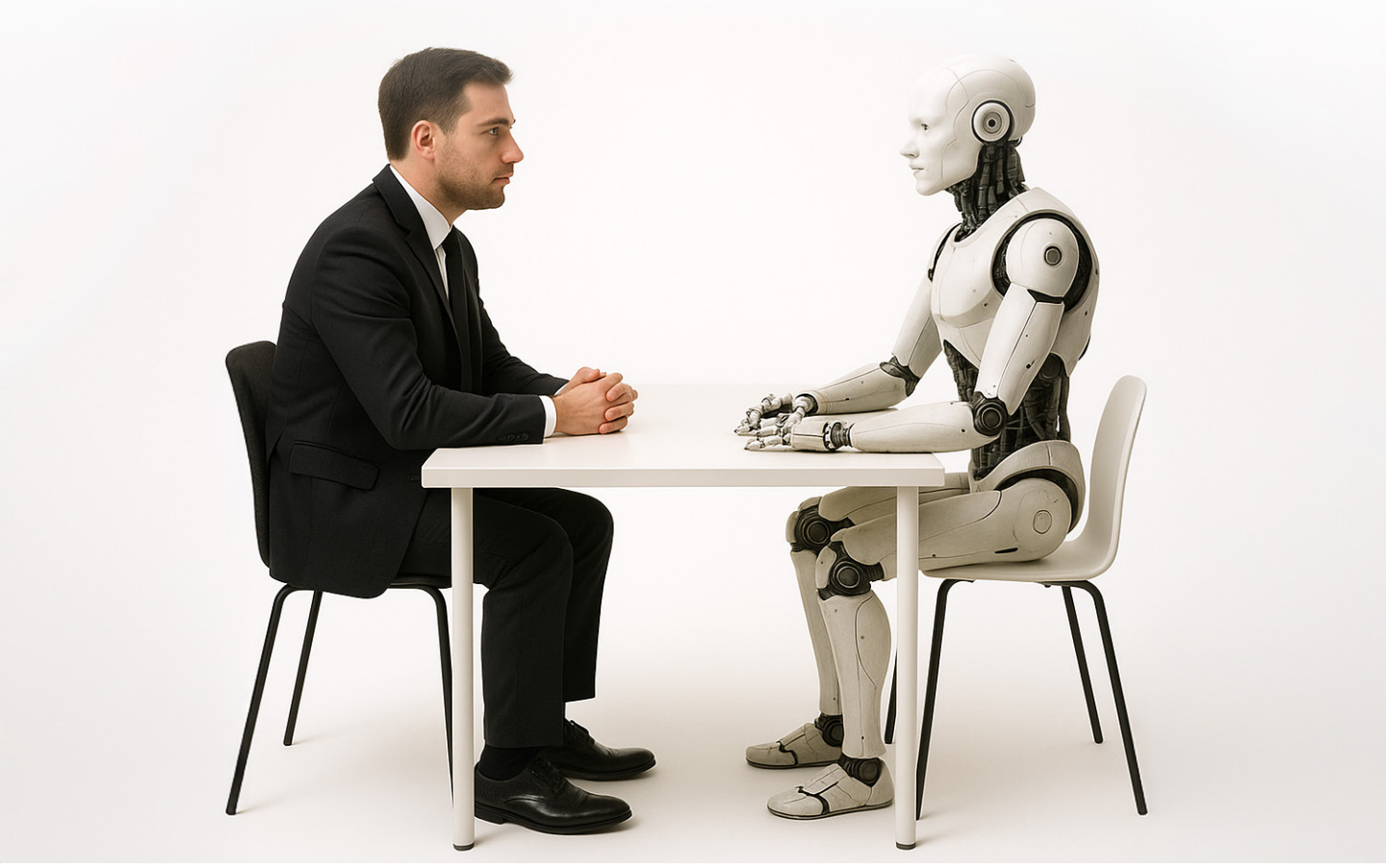
Rule 707 would apply 702-level scrutiny to AI-generated results used as evidence or supporting expert testimony. The court must ensure the output was produced by a reliable process, not just an impressive algorithm. While basic scientific instruments like thermometers are excluded, AI models that analyze complex data or render judgments fall squarely within the scope.

Experts Will Not Be Replaced. They'll Be Repositioned

Despite fears of AI replacing human expertise, the expert witness role is more important than ever. Experts may no longer be called only to offer opinion, but they will also be critical in interpreting and validating AI processes. Lawyers will need expert support not just to explain AI evidence to the jury, but to satisfy threshold admissibility standards.

Examples include:

- Authenticating surveillance footage suspected of alteration
- Validating metadata from AI-enhanced eDiscovery tools
- Explaining neural network outputs tied to risk scoring, sentiment analysis, or behavioral prediction



Ethical Dimensions:
Competence and Candor in the Age of AI

Under Model Rule 1.1, attorneys are ethically required to maintain competence, including understanding the risks and benefits of relevant technologies. AI is no longer optional. It is central to litigation and evidence strategy.

Attorneys and experts alike must:

- Stay informed on how AI evidence is generated and used
- Scrutinize tools and platforms for explainability and reliability
- Be prepared to challenge or defend AI-generated materials with technical detail
- Avoid overreliance on tools that cannot be clearly explained in court



AI That Can't Be Explained, Can't Be Admitted

When asked about opaque or "black box" AI, the message from the panel was clear: If an expert can't explain how the AI worked, the evidence likely won't survive judicial scrutiny. This principle already exists under Rule 702, and will become more prominent if Rule 707 is enacted.

Evidence must be transparent, reliable, and subject to examination. Otherwise, it cannot support fair adjudication.



Looking Ahead:
A Courtroom Built on AI Literacy

As AI technology continues to advance, the courtroom must evolve in parallel. Judges, attorneys, and expert witnesses will need to:

- Develop AI literacy, understanding not just what AI does, but how
- Embrace interdisciplinary collaboration between legal and technical professionals
- Establish early case assessments for AI-generated evidence
- Advocate for transparency and explainability in commercial AI tools

Legal teams must also prepare for sector-specific challenges, from biometric surveillance in retail to AI-driven fraud detection in finance. Contextualizing AI evidence will demand more than legal reasoning, and it will require strategic application of technical expertise.



Final Takeaway:
The Human Expert Is the AI Interpreter

As the law evolves to meet the rise of AI, one truth remains: technology doesn't testify–people do. The role of the expert is to bridge the gap between powerful tools and legal standards. AI can support investigations, streamline discovery, and generate insight, but only when anchored by human judgment, explainability, and legal relevance.

To thrive in this new era, attorneys and experts must stay informed, stay skeptical, and stay collaborative. Courts are not rejecting AI, but they are demanding that we use it responsibly.



Watch the full webinar.

CLICK HERE TO VIEW

iDiscovery Solutions

Who?

- Teddy Brown, Managing Director, iDiscovery Solutions, Inc.
- Jeremy Kahn, Principal, Berman Fink Van Horn P.C.

What?

AI on the Stand: Navigating the Role of Artificial Intelligence in Expert Witness Testimony

When?

Available On-Demand

Summary:

- Recent case law shaping the standards for AI in expert testimony
- Key questions to assess the reliability and admissibility of AI-generated insights
- Best practices for preserving professional oversight and ethical integrity when using AI tools
- Tactics for uncovering undisclosed AI involvement in opposing expert reports

Trusted by leading law firms and Fortune 500 companies from around the world, iDS stands at the intersection of legal acumen and cutting-edge technology. Here, we don't just manage data; we transform it into actionable insights, ensuring compliance, streamlining litigation, and safeguarding your reputation. When the stakes are high and the data vast, industry leaders turn to iDS for consultative expertise, customized solutions, and an efficient process built on accountability, confidence, and trust.

Visit iDSinc.com to Learn More